(c) If a person is elected to two seats in a House, he/she should exercise his/her option for one. Otherwise, both seats become vacant.

Similarly, a person cannot be a member of both the Parliament and the state legislature at the same time. If a person is so elected, his/her seat in Parliament becomes vacant if he/she does not resign his/her seat in the state legislature within 14 days[8].

2. Disqualification If a member of Parliament becomes subject to any of the disqualifications specified in the Constitution, his/her seat becomes vacant. Here, the list of disqualifications also include the disqualification on the grounds of defection under the provisions of the Tenth Schedule of the Constitution.

3. Resignation A member may resign his/her seat by writing to the Chairman of Rajya Sabha or Speaker of Lok Sabha, as the case may be. The seat falls vacant when the resignation is accepted. However, the Chairman/Speaker may not accept the resignation if he/she is satisfied that it is not voluntary or genuine.

4. Absence A House can declare the seat of a member vacant if he/she is absent from all its meetings for a period of sixty days without its permission. In computing the period of sixty days, no account shall be taken of any period during which the House is prorogued or adjourned for more than four consecutive days.

5. Other cases A member has to vacate his/her seat in the Parliament:

(a) if his/her election is declared void by the court;

(b) if he/she is expelled by the House;

(c) if he/she is elected to the office of President or Vice-President; and

(d) if he/she is appointed to the office of governor of a state.

If a disqualified person is elected to the Parliament, the Constitution lays down no procedure to declare the election void. This matter is dealt by the Representation of the People Act (1951), which enables the high court to declare an election void if a disqualified candidate is elected. The aggrieved party can appeal to the Supreme Court against the order of the high court in this regard.

 **Oath or Affirmation**

Every member of either House of Parliament, before taking his/her seat in the House, has to make and subscribe to an oath or affirmation before the President or some person appointed by him/her for this purpose. In his/her oath or affirmation, a member of Parliament swears:

1. to bear true faith and allegiance to the Constitution of India;
2. to uphold the sovereignty and integrity of India; and
3. to faithfully discharge the duty upon which he/she is about to enter.